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Anmelde-Nr:
Application No: 10 735 074.6
Demande n°:

The examination is being carried out on the following application documents

Description, Pages

1-33 as originally filed

Claims, Numbers

1-27 filed with entry into the regional phase before the EPO

Cited documents.

- D1 US 2002/054918 A1 (MURAD) 9 May 2002
- D2 US 2004/081672 A1 (GUPTA) 29 April 2004
- D3 US 5 843 998 A (SONG ET AL) 1 December 1998
- D4 US 2004/092482 A1 (GUPTA) 13 May 2004
- D5 WO 95/03779 A1 (UNILEVER) 9 February 1995
- D6 US 2001/019722 A1 (FOTINOS ET AL) 6 September 2001
- D7 CA 2 386 648 A1 (FYTOKEM PRODUCTS) 16 November 2003

1 Modifications (Article 123(2) EPC).

- 1.1 A new set of claims has been filed upon entry into the European phase. A basis has been found for the subject matter of all claims except for that of present claim 6 where no basis has been found for the fact that the cetylhydroxyproline palmitate component can be present in a quantity of at least 0.02 weight %.
- 1.2 This objection aside, the rest of the claims meet the requirements of Article 123(2) EPC.

2 Medical uses and conflict with Article 53(c) EPC.

- 2.1 As mentioned in the PCT phase, the subject matter of the present claims 22 to 27 contravenes Article 53(c) EPC. The subject matter of these claims concerns a method of treatment of the human body by therapy (a treatment of acne), which is excluded from patentability by virtue of Article 53(c) EPC. The use of the expression *non-therapeutic* or *cosmetic* is insufficient to render a method of the treatment of acne allowable since the therapeutic indication is considered to be inseparable from the cosmetic one. Therefore, the claimed method inevitably encompasses a therapeutic effect irrespective of the wording of the claim, and the method as a whole falls under the provisions of Article 53(c) EPC (please see T 820/92 and T 82/93).
- 2.2 It is recommended to either delete these claims or to formulate them in a manner according to Article 54(4) & (5) EPC (please see the Guidelines for examination at the EPO, G-II, 4.2). This wording should encompass the composition as claimed *for use in the treatment of acne*.
- 3 **Novelty (Article 54 EPC).**
- 3.1 Novelty objections were raised in the PCT phase (please refer to the WO ISA). These objections are still valid for the present set of claims, particularly the subject matter of present claim 1.
- 3.2 The subject matter of the present claim 1 concerns a skin care composition comprising salicylic acid or a salt thereof in combination with at least two actives selected from: lactic acid (or a salt thereof); glycyrrhizinic acid (or a salt or derivative thereof); bisabolol; cetylhydroxyproline palmitamide; allantoin; niacinamide; and epilobium angustifolium extract.
- 3.3 Compositions falling within the scope of this claim are already known in the prior art.
- 3.4 D1 (US 2002/0054918) discloses in example 2 a composition comprising salicylic acid in combination with an epilobium angustifolium (Canadian willowherb) extract and dipotassium glycyrrhizate.

- 3.5 D2 (US 2004/0081672) discloses an acne treatment gel composition comprising niacinamide, lactic acid and salicylic acid in combination (see example 10, paragraph 60). This example also falls within the scope of the present composition claims.
- 3.6 D3 (US 5843998) discloses a composition comprising salicylic acid in combination with lactic acid and allantoin for the treatment of skin blemishes (see claims 1, 2, 16 and 17; with respective quantities provided in column 3, lines 22 to 49). The compositions according to this disclosure are intended for the treatment of acne vulgaris (see opening paragraphs). The composition base material comprises an alcohol with a thickener component (see column 3, lines 44 to 48).
- 3.7 D4 (US 2004/0092482) discloses a gel composition for the treatment of acne in example 7 which comprises niacinamide, lactic acid and salicylic acid in combination, thus falling within the scope of the subject matter of the present claims for the composition of the present application.
- 3.8 D5 (WO 95/03779) discloses skin care compositions comprising salicylic acid in combination with diammonium glycyrrhizinate and bisabolol (see all examples).
- 3.9 The application of such a composition by way of a fibrous article (present claim 21) has not been explicitly disclosed in the above cited documents D1 to D5. However, the application of a skin lotion by means of an impregnated wipe is well known in the cosmetic area. Furthermore, the simple application of the known lotions of documents D1 to D5 to a fibrous tissue followed by application to the skin is a common technique for delivering skin care preparations. Fibrous patches (which comprise cellulose) are already known from D6 (US 2001/019722) for the delivery of an anti-acne composition similar to that of the present application (see D6, paragraphs 22 to 24 and 38 as well as the claims) to the skin.
- 3.10 The subject matter of the present claims 22 to 27 is likewise not novel since all of the above mentioned examples in documents D1 to D5 are intended for the treatment of acne.

- 3.11 As such, the subject matter of the present claims lacks novelty and does not meet the requirements of Article 54 EPC.

4 Inventive step (Article 56 EPC).

- 4.1 While inventive step will not be discussed in depth until a novel and allowable set of claims has been agreed upon, a few points are laid out here to aid the applicant in the drafting of the case.

- 4.2 The present application concerns treatments for acne. The technical problem that the present application aims to solve is to improve the efficacy of topical acne treatments.

- 4.3 This is achieved by combining salicylic acid, which is known to be effective in the treatment of acne, with at least two further components, also known to be effective in the treatment of acne. In this respect, what appears to be happening is a mere accumulation of anti-acne activity in that a plurality of agents are used in combination to solve the problem.

- 4.4 Given that all of these agents are already known for their anti-acne properties, a composition comprising a combination of them (if novel) is likely to lack inventive step, particularly in the absence of any surprising or unexpected advantage, or a synergistic effect.

- 4.5 Furthermore, the composition of the present claim 1 comprises salicylic acid plus 2 actives from the list provided in claim 1, however, in the in-vitro tests provided in the example 11 (page 32) binary compositions appear to be more effective than those comprising salicylic acid with two further components.

5 Clarity (Article 84 EPC).

- 5.1 The combination of the definition of the respective quantities of the individual components renders the subject matter of these claims unclear. Taking present claim 2, for example, only one of the components salicylic or lactic acid need be present in a quantity of at least 0.01 weight %. The second component, if present, can be present at 99.99 weight %.

- 5.2 It is not clear whether the composition according to present claim 1 comprises the salicylic acid plus *at least* two of the actives listed, or whether it comprises only 2 of the actives selected (and not more)

6 **Third party observations.**

- 6.1 The examining division would further like to draw the attention of the applicant to set of third party observations that were filed on the 10th January 2014.

- 6.2 These documents show that the use of Glycyrrhiza glabra linn and Matricaria chamomilla Linn which are sources of bisabolol are already known for use in the treatment of acne. Triticum aestivum linn, Hordeum vulgare linn and rice water, which are sources of niacinamide, have also been disclosed for use in acne treatments.